

25STCV15909 25STCV15909

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Case Number: 25STCV15909 Hearing Date: September 11, 2026 Dept: 406

RALPH SIBLEY, et al.,

Plaintiffs,

v.

FORD MOTOR COMPANY, et

al.,

Defendants.

Case No.: 25STCV15909

Hearing Date: September 11, 2026

[TENTATIVE]

order RE:

defendant ford motor company's motion

for summary judgment or adjudication

BACKGROUND

On May 30, 2025, Plaintiffs Ralph

Sibley and Catherine Sibley filed this action against Defendants Ford Motor

Company (Ford) and Santa Monica Ford Lincoln (Dealer). The complaint asserts

causes of action for violations of the Song-Beverly Act, breach of warranty,

negligent repair, and fraud. The fraud claim has since been stricken.

On June 15, 2026, Ford filed the instant motion for summary judgment or adjudication. Plaintiffs filed an opposition on August 21, 2026. Ford filed a reply on August 31, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

DISCUSSION

I.

Express Warrantly

a. Statute of Repose

Effective January 1, 2025, the Code of

Civil Procedure imposes new time limits for actions “seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Code Civ. Proc., § 871.20(a).) Specifically, the action “shall be commenced within one year after the expiration of the applicable express warranty.” (Code Civ. Proc., § 871.21(a).)

Here, Plaintiffs purchased the subject vehicle on April 20, 2021. (Def.’s Stmt. of Undisputed Facts (UF) 1.) Ford’s bumper-to-bumper warranty lasts for 3 years or 36,000 miles, whichever occurs sooner. (UF 2.) Thus, the warranty expired on April 20, 2024. Ford argues that the Song-Beverly claims are untimely because Plaintiffs filed this action on May 30, 2025, more than 1 year after the expiration of the bumper-to-bumper warranty. Plaintiffs presented the vehicle for repairs to the driver’s window and rear shock absorbers, which occurred under the bumper-to-bumper warranty. (UF 5, 9, 14.)

Plaintiffs argue that the bumper-to-bumper warranty is not the only applicable express warranty. Specifically, the vehicle also came with a 5-year/60,000-mile powertrain warranty, an 8-year/100,000-mile hybrid/electric vehicle warranty, and emissions warranties. (Plntf.’s Stmt. of Additional Facts (AF) 22-24.) Plaintiffs contend that the vehicle was subject to a recall for an engine defect and that this defect falls under the longer warranties.

In June 2023, Ford issued a recall notice to Plaintiffs, stating that “a defect that relates to motor vehicle safety exists in your vehicle, with the VIN shown above.” (Moawad Decl., Ex. 8, emphasis added.) The recall notice stated that “significant quantities of engine oil and/or fuel vapor may be released into the under hood environment and may migrate to and/or accumulate near ignition sources.” (Ibid.) According to the notice, this may lead to “a reduction in available engine power” and “increasing the risk of a fire.” (Ibid.) This is evidence that an engine defect existed in Plaintiffs’ specific vehicle.

The engine defect potentially falls under the 5-year/60,000-mile powertrain warranty, which expired on April 20, 2026. A claim under this warranty would therefore be timely under the statute of

repose. Ford presented no evidence that the faulty window and leaking shock absorbers were the only defects on the subject vehicle. In fact, evidence of the additional engine defect appears in Ford's own evidence. (Moawad Decl., Ex. 8 [recall notice]; Ex. 9 at 40:2-42:4 [testimony regarding engine recall].) By failing to address all relevant defects and the warranties applicable to them, Ford has failed to satisfy its initial burden of showing that the Song-Beverly claims are time-barred as a matter of law.

In reply, Ford argues that the statute of repose is triggered by the expiration of "applicable" warranties, not all existing warranties. Ford argues that Plaintiffs never presented the vehicle for repair under any warranty except the bumper-to-bumper warranty. However, the engine defect arguably falls under the 5-year/60,000-mile powertrain warranty. Plaintiff Ralph Sibley testified that he waited four months for the engine to be repaired in relation to the 2023 recall notice. (Moawad Decl., Ex. 9 at 40:2-42:4.) This suggests that Plaintiffs did present the vehicle for the engine defect. Ford has not precluded this possibility.

In sum, triable issues remain over a potential engine defect falling within the 5-year/60,000-mile powertrain warranty. Because a claim under this warranty would be timely under the statute of repose, the Court cannot find the claims to be time-barred as a matter of law.

b. Substantial Impairment

A "nonconformity" is one which "substantially impairs the use, value, or safety of the new motor vehicle." (Civ. Code, § 1793.22(e)(1).)

Ford argues that neither the window nor shock absorber defects substantially impaired the vehicle because Plaintiffs were admittedly able to drive it despite the defects. First, Ford cites no authority suggesting that a defect does not substantially impair a vehicle so long as the vehicle remains drivable. The Act requires substantial impairment, not total impairment. What is considered "substantial" is an inherently factual question. Plaintiff Ralph Sibley testified that the window defect impaired his ability to drive safely. (Moawad Decl., Ex. 9 at 25:1-27:15.)

Second, the additional engine defect may

be considered a substantial impairment. In particular, the defect subjected the vehicle to a risk of premature engine failure and fire. (Moawad Decl., Ex. 8.) Plaintiff Ralph Sibley testified that he avoided driving on the freeway due to the risk. (Id., Ex. 9 at 40:8-12.) A reasonable trier of fact may find that the engine defect substantially impaired the use, value, or safety of the vehicle.

Ford's argument that the recall was a preventative measure, and that no defect actually existed in Plaintiffs' vehicle, is unsupported by evidence. Ford argues that the vehicle was "asymptomatic." (Reply 3:15-17.) To the extent Ford is suggesting that a nonconformity did not exist because the engine did not actually catch fire or experience some type of failure, this position is unsupported by law. A "nonconformity" is one which "substantially impairs the use, value, or safety of the new motor vehicle." (Civ. Code, § 1793.22(e)(1).) A defect which increases the risk of an engine failure or fire arguably impairs the vehicle's use, value, or safety, even if a failure does not actually occur.

In sum, triable issues remain over whether the vehicle suffered from nonconformities which substantially impaired its use, value, or safety.

c. Timely Repairs

Under the Song-Beverly Act, "service and repair shall be commenced within a reasonable time by the manufacturer or its representative." (Civ. Code, § 1793.2(b).) "Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." (Ibid.)

Here, Ford argues that the window and shock absorber repairs were completed within one or two days. However, as discussed above, the evidence indicates that the vehicle suffered from an additional engine defect. Ford has presented no evidence regarding when it commenced or completed the repair of this defect, thus leaving open a triable issue. The existing evidence also raises a triable issue. The recall notice stated that repairs could not be commenced until parts were available in October 2023. (Moawad Decl., Ex. 8.) Plaintiff Ralph Sibley testified that he waited four months for repairs. (Id., Ex. 9 at 40:2-42:4.)

Ford argues that the claim requires

evidence “that the Vehicle was out for service (i.e. out for repair at the shop) for more than 30 days or that the servicing dealership kept the vehicle longer than necessary because they lacked sufficient parts/service literature.” (Reply 4:7-9.) Ford cites no authority for this position. If Ford’s argument were true, a manufacturer could delay repairs for any amount of time and avoid liability under section 1793.2 so long as it does not physically keep the vehicle for more than 30 days. This would defy the purpose of the Act. Moreover, even if Ford’s legal argument were correct, Ford presents no evidence regarding how long it took to repair the engine defect. Thus, Ford has not precluded the possibility that it took longer than 30 days to repair the engine and accordingly fails to meet its initial burden on the motion.

Moreover, the statute specifically states that repair must be “commenced within a reasonable time.” (Civ. Code, § 1793.2(b).) Ford’s argument that there is no independent duty to commence repairs within a reasonable time is unsupported by citation to authority and is contradicted by the plain language of the Act. (See also CACI 3205 [identifying two potential ways to violate section 1793.2(b)—failure to begin repairs in a reasonable time or failure to repair within 30 days].) Ford presents no evidence that it commenced repairs within a reasonable time, and the existing evidence suggests that repairs were not commenced within a reasonable time.

In sum, triable issues remain over Ford’s obligation to perform timely repairs.

d. Sufficient Parts and Literature

The Song-Beverly Act requires a manufacturer to “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2(a)(3).)

Ford argues that “Plaintiffs’ document production and disclosures identified no facts nor evidence supporting any violation of Civil Code § 1793.2(a)(3) let alone any damages from such a violation.” (Mtn. 15:25-26.) However, Ford’s motion ignores the engine defect and presents no evidence regarding the provision of parts and literature pertaining to that defect. Therefore, Ford has failed to meet the summary judgment burden in relation to sufficient parts and literature.

II.

Implied Warranty

Ford argues that the only defect which manifested during the one-year duration of the implied warranty (Civ. Code, § 1791.1(c)) was the window defect, which Plaintiffs admitted did not hinder their ability to drive. First, as discussed above, drivability is not the sole test for impairment. Plaintiff Ralph Sibley testified that the window defect presented a safety hazard. Second, Ford does not address the engine defect, presenting no evidence that this defect manifested outside of the one-year implied warranty period.

Ford also argues that Plaintiffs suffered no damages because they presented no evidence of the vehicle's diminution in value as a result of the window defect. However, the engine defect arguably impaired the value of the vehicle. Ford presents no evidence to the contrary.

Therefore, triable issues remain over Ford's breach of the implied warranty.

CONCLUSION

Defendant Ford Motor Company's motion for summary judgment or adjudication is DENIED.